

On August 11, 2026, Petitioners filed the Declaration of their counsel, James Claytor, along with Objections to Respondent's Opposition to the Petition to Compel. Petitioners state that they first became aware of Respondent's opposition on August 7, 2026, when mediation provider ADR Services provided a link to Respondent's mediation brief, which attached unfiled copies of the opposition.

Petitioners ask the Court to disregard Respondent's opposition. The Court declines to do so and finds that the better course is to continue the hearing to allow Petitioners sufficient time file a substantive reply. Petitioners may file their reply on or before September 16, 2026.

If the matter settles in mediation or the parties stipulate to submit their dispute to arbitration, Petitioners shall promptly take the Petition off calendar.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: C24-01850

CASE NAME: DANIEL KNUTSON VS. STERICYCLE, INC.

***HEARING ON MOTION FOR DISCOVERY TO COMPEL DEFENDANT'S SUPPLEMENTAL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET THREE**

FILED BY: KNUTSON, DANIEL

TENTATIVE RULING:

Plaintiff Daniel Knutson ("Plaintiff") filed a motion to compel supplemental discovery responses on June 23, 2026 to compel further responses to discovery requests (the "Motion to Compel Further Responses") propounded upon defendant Stericycle, Inc. ("Defendant"). The Motion to Compel Further Responses was set for hearing on December 14, 2026. The hearing date was later advanced to August 17, 2026. See Order entered July 22, 2026.

Background

The discovery requests at issue in the Motion to Compel Further Responses (collectively, the "Discovery Requests") are the following:

1. Plaintiff's Requests for Production of Documents, Set Three (the "**RPDs**"). Specifically, RPDs, Nos. 95-96 and 98-99.

A Separate Statement in support of the motion was filed on June 23, 2026.

Opposition papers were filed on August 4, 2026, including an opposition Separate Statement.

A reply was filed August 10, 2026.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of

admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Having considered the moving papers, including the Separate Statement, the opposition, the reply and any further pleadings submitted, the Court makes the following findings and orders as to the Discovery Requests and responses at issue:

RPDs

RPD No. 95.

This RPD seeks production of **“All DOCUMENTS and ESI regarding Elisha Glick’s length of service with YOU.”** (emphasis added).

The response recites a litany of boilerplate objections and then contains a compliance statement to the effect that the responding party will comply and produce all responsive documents in its possession, custody, and/or control:

Responding Party objects to this request on the grounds that it is vague and ambiguous. Responding Party further objects to this request as overbroad, unduly burdensome, and oppressive as to time and scope. Responding Party further objects to this request as it seeks the production of electronically stored information on the grounds that such electronically stored information, if any at all, may not be reasonably accessible and recovery of this data would be an undue burden and expense to Responding Party and is not proportional to the needs of the case. Responding Party further objects to this request as disclosure of the information sought would violate the privacy rights of third parties and/or Responding Party’s past and/or present employees under the Constitution of the United States and the State of California and under statutory or common law privacy principles. Without waiving the foregoing:

Responding Party will comply with this request and produce all responsive documents in its possession, custody, and/or control.

The propounding party contends that the responding party failed to identify produced responsive documents by the specific demand to which the documents respond as required by Code of Civil Procedure section 2031.280(a).

Section 2031.280(a) provides:

Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.

See Code Civ. Proc. § 2031.280(a).

The responding party contends that it complied with Section 2031.280 by providing the requesting party with “a document matrix identifying the Bates number ranges responsive to each request.” See Declaration of Erin Collins Dulle filed August 4, 2026 (“Dulle Decl.”) ¶14; see Declaration of Kristen Tojo filed June 23, 2026 (“Tojo Decl.”) **Exhibit 4**.

The requesting party argues that a “free-standing, extra-response matrix that is unverified and not served as part of the written response does not satisfy Section 2031.280(a).”

The Court is not aware of any authority to support this proposition and the requesting party has cited none.

Section 2031.280 speaks in terms of the manner in which “documents produced in response” are to identified. It says nothing about the content of the verified written compliance statement. See Code Civ. Proc. § 2031.280(a).

Section 2031.210(c), cited by the requesting party, discusses the requirements for the written response. It contains no reference to Section 2031.280.

The reference to *Melendrez v. Superior Court* for the proposition that “[u]nverified substantive discovery responses are treated as no responses at all” is unavailing. Nothing in that case dealt with Section 2031.280. See *Melendrez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1348.

Indeed, the authority that the Court is aware of bearing on this issue is contrary to the moving party’s position. See *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1351 (“**Based on the plain language of section 2031.210, a statement of compliance need not identify the specific request to which each document will pertain.**”) (emphasis added). The Court observed that nothing in Section 2031.280 requires this. *Id.* at 1358.

The Court also rejects the contention that the response is not code compliant as written. The Court finds that the compliance statement here indicates the party “will comply” and does not purport to limit that compliance statement in any material way. It states, affirmatively, that all documents in the responding party’s possession, custody, or control will be produced. See Code Civ. Proc. § 2031.210(a); see *Pollock v. Superior Court, supra*, 93 Cal.App.5th at 1357 (discussing nature of code compliant response to document demand); see also Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 8:1469.

While it is arguable whether the inclusion of boilerplate or general objections is proper, the Court declines to compel any further response in light of the unequivocal compliance statement.

The request to compel a further response to this document production request is **DENIED**.

RPD No. 96.

This RPD seeks production of “**All DOCUMENTS and ESI regarding Elisha Glick’s Secure Information Destruction (“SID”) Knowledge with YOU.**” (emphasis added).

No substantive response made, only a litany of objections.

The Court first considers the objection that the category of documents sought is vague and ambiguous.

Documents “regarding” a person’s “Information Destruction (“SID”) Knowledge with YOU” is awkward phrasing. However, the call of the request is not so ambiguous so as to render the request unintelligible and/or preclude an intelligent reply. See CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) (“CJER Civ. Pro.—Discovery”), § 5.5.

The Court finds that the request is sufficiently definite to allow an intelligent reply.

In particular, it is amenable to the interpretation that the request is seeking any documents and ESI related to this person knowledge of a given topic—here, Secure Information Destruction (“SID”)—while employed “with YOU.”

The responding party also objects that the request is overbroad.

Given that the request can be read to seek all documents and ESI related to the person’s knowledge of the referenced topic, Secure Information Destruction (“SID”), the question becomes whether such a broad range of documents and ESI are properly discoverable. The Court concludes they are not.

The request seeks production of an extraordinarily wide range of documents that would not have any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the particular claims at issue or lead to the discovery of any such evidence.

As addressed in the opposition, the “SID Knowledge by Years” factor at issue in the evaluation refers to years of experience within Stericycle’s Secure Information Destruction business unit. No credible showing is made that somehow, the person’s entire “knowledge” of “Secure Information Destruction (“SID”)”—whatever that might be read to mean—and every document “regarding” that is somehow relevant to this litigation or likely to lead to discovery of relevant evidence.

In light of the foregoing, the Court need not consider the other stated objections.

The Court finds that the moving party has failed to set forth specific facts showing good cause justifying the discovery sought by the demand. Accordingly, the request to compel a further response to this document production request is **DENIED**.

RPD No. 98.

This RPD seeks production of **“All DOCUMENTS and ESI regarding Elisha Glick’s discipline with YOU.”** (emphasis added).

The request to compel a further response to this document production request is **DENIED** for the same reasons discussed above in connection with RPD No. 95.

RPD No. 99.

This RPD seeks production of **“All DOCUMENTS and ESI relating to the percentage weights assigned to each category used in the decision matrix.”** (emphasis added).

The responding party’s response states:

Responding Party objects to this request on the grounds that it is vague and ambiguous.
Responding Party further objects to this request as overbroad. Without waiving the foregoing:
Responding Party previously produced all documents in its possession, custody, and/or control that are responsive to this request.

The Court is not aware of any authority to permitting a party to respond with a statement that it “previously produced” responsive documents and the responding party has cited none. See Code Civ. Proc. § 2031.210(a); see *Pollock v. Superior Court*, *supra*, 93 Cal.App.5th at 1357 (discussing nature of code compliant response to document demand); see also Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 8:1469.

The Court finds that the compliance statement is not code-compliant. Accordingly, the motion is **GRANTED** as to this request and a further response shall be made as ordered below.

The stated objections are **OVERRULED**. The responding party is ordered to make a further response to this document request without the overruled objections and to produce any further responsive documents. If any responsive documents are redacted or withheld pursuant to any privilege objection(s), the responding party shall provide a detailed privilege log. The privilege log need not designate documents generated by the responding party's attorneys which may be withheld without further disclosure, subject to any further court order.

The requesting party's contention as to non-compliance with Section 2031.280 is rejected for the same reasons discussed above in connection with RPD No. 95.

Sanctions

The Court has considered and denies the imposition of sanctions. The Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2031.300(c) ("...the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is **GRANTED IN PART** and **DENIED IN PART**, as set forth further above.
2. Defendant shall serve a verified further amended response (along with production of all responsive documents) to **RPD No. 99 on or before Friday, August 28, 2026**, in accordance with the further orders and directives set forth above.
3. Any and all sanctions requests are **DENIED**. However, the Court reserves jurisdiction regarding the consideration and imposition of any and all further sanctions as the Court may deem just and necessary pending compliance with this order.
4. The Court shall issue the order after hearing.

19. 9:01 AM CASE NUMBER: C25-00272

CASE NAME: KATIE MOLLES VS. WAYNE ACKERMAN

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS, SET 1
FILED BY: VOYAGER GLOBAL MOBILITY LLC**

TENTATIVE RULING:

CONTINUED to November 2, 2026, 9:00 am, in Department 34 pursuant to the Court's Order entered August 7, 2026.

20. 9:01 AM CASE NUMBER: C25-00272

CASE NAME: KATIE MOLLES VS. WAYNE ACKERMAN